

PHILIPPINE BIDDING DOCUMENTS

(As Harmonized with Development Partners)

BIDDING DOCUMENTS FOR

CONTRACT ID:24CC0265

CONTRACT NAME:

**Construction of Reinforced Concrete Flood Control Structure
along Tabang River, Barangay Tibig**

CONTRACT LOCATION: Bulakan, Bulacan

Date of Opening of Bids: February 29, 2024 at 10:00 A.M.

Start Date for Issuance of Bid Documents: February 8, 2024

Sixth Edition

July 2020

Preface

These Philippine Bidding Documents (PBDs) for the procurement of Infrastructure Projects (hereinafter referred to also as the “Works”) through Competitive Bidding have been prepared by the Government of the Philippines for use by all branches, agencies, departments, bureaus, offices, or instrumentalities of the government, including government-owned and/or -controlled corporations, government financial institutions, state universities and colleges, local government units, and autonomous regional government. The procedures and practices presented in this document have been developed through broad experience, and are for mandatory use in projects that are financed in whole or in part by the Government of the Philippines or any foreign government/foreign or international financing institution in accordance with the provisions of the 2016 revised Implementing Rules and Regulations (IRR) of Republic Act (RA) No. 9184.

The PBDs are intended as a model for admeasurements (unit prices or unit rates in a bill of quantities) types of contracts, which are the most common in Works contracting.

The Bidding Documents shall clearly and adequately define, among others: (i) the objectives, scope, and expected outputs and/or results of the proposed contract; (ii) the eligibility requirements of Bidders; (iii) the expected contract duration; and (iv) the obligations, duties, and/or functions of the winning Bidder.

Care should be taken to check the relevance of the provisions of the PBDs against the requirements of the specific Works to be procured. If duplication of a subject is inevitable in other sections of the document prepared by the Procuring Entity, care must be exercised to avoid contradictions between clauses dealing with the same matter.

Moreover, each section is prepared with notes intended only as information for the Procuring Entity or the person drafting the Bidding Documents. They shall not be included in the final documents. The following general directions should be observed when using the documents:

- a. All the documents listed in the Table of Contents are normally required for the procurement of Infrastructure Projects. However, they should be adapted as necessary to the circumstances of the particular Project.
- b. Specific details, such as the “*name of the Procuring Entity*” and “*address for bid submission*,” should be furnished in the Instructions to Bidders, Bid Data Sheet, and Special Conditions of Contract. The final documents should contain neither blank spaces nor options.
- c. This Preface and the footnotes or notes in italics included in the Invitation to Bid, BDS, General Conditions of Contract, Special Conditions of Contract, Specifications, Drawings, and Bill of Quantities are not part of the text of the final document, although they contain instructions that the Procuring Entity should strictly follow.
- d. The cover should be modified as required to identify the Bidding Documents as to the names of the Project, Contract, and Procuring Entity, in addition to date of issue.

- e. Modifications for specific Procurement Project details should be provided in the Special Conditions of Contract as amendments to the Conditions of Contract. For easy completion, whenever reference has to be made to specific clauses in the Bid Data Sheet or Special Conditions of Contract, these terms shall be printed in bold typeface on Sections I (Instructions to Bidders) and III (General Conditions of Contract), respectively.
- f. For guidelines on the use of Bidding Forms and the procurement of Foreign-Assisted Projects, these will be covered by a separate issuance of the Government Procurement Policy Board.

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Glossary of Terms, Abbreviations, and Acronyms

ABC – Approved Budget for the Contract.

ARCC – Allowable Range of Contract Cost.

BAC – Bids and Awards Committee.

Bid – A signed offer or proposal to undertake a contract submitted by a bidder in response to and in consonance with the requirements of the bidding documents. Also referred to as *Proposal* and *Tender*. (2016 revised IRR, Section 5[c])

Bidder – Refers to a contractor, manufacturer, supplier, distributor and/or consultant who submits a bid in response to the requirements of the Bidding Documents. (2016 revised IRR, Section 5[d])

Bidding Documents – The documents issued by the Procuring Entity as the bases for bids, furnishing all information necessary for a prospective bidder to prepare a bid for the Goods, Infrastructure Projects, and/or Consulting Services required by the Procuring Entity. (2016 revised IRR, Section 5[e])

BIR – Bureau of Internal Revenue.

BSP – BangkoSentral ng Pilipinas.

CDA – Cooperative Development Authority.

Consulting Services – Refer to services for Infrastructure Projects and other types of projects or activities of the GOP requiring adequate external technical and professional expertise that are beyond the capability and/or capacity of the GOP to undertake such as, but not limited to: (i) advisory and review services; (ii) pre-investment or feasibility studies; (iii) design; (iv) construction supervision; (v) management and related services; and (vi) other technical services or special studies. (2016 revised IRR, Section 5[i])

Contract – Refers to the agreement entered into between the Procuring Entity and the Supplier or Manufacturer or Distributor or Service Provider for procurement of Goods and Services; Contractor for Procurement of Infrastructure Projects; or Consultant or Consulting Firm for Procurement of Consulting Services; as the case may be, as recorded in the Contract Form signed by the parties, including all attachments and appendices thereto and all documents incorporated by reference therein.

Contractor – is a natural or juridical entity whose proposal was accepted by the Procuring Entity and to whom the Contract to execute the Work was awarded. Contractor as used in these Bidding Documents may likewise refer to a supplier, distributor, manufacturer, or consultant.

CPI – Consumer Price Index.

DOLE – Department of Labor and Employment.

DTI – Department of Trade and Industry.

Foreign-funded Procurement or Foreign-Assisted Project –Refers to procurement whose funding source is from a foreign government, foreign or international financing institution as specified in the Treaty or International or Executive Agreement. (2016 revised IRR, Section 5[b]).

GFI – Government Financial Institution.

GOCC –Government-owned and/or –controlled corporation.

Goods – Refer to all items, supplies, materials and general support services, except Consulting Services and Infrastructure Projects, which may be needed in the transaction of public businesses or in the pursuit of any government undertaking, project or activity, whether in the nature of equipment, furniture, stationery, materials for construction, or personal property of any kind, including non-personal or contractual services such as the repair and maintenance of equipment and furniture, as well as trucking, hauling, janitorial, security, and related or analogous services, as well as procurement of materials and supplies provided by the Procuring Entity for such services. The term “related” or “analogous services” shall include, but is not limited to, lease or purchase of office space, media advertisements, health maintenance services, and other services essential to the operation of the Procuring Entity. (2016 revised IRR, Section 5[r])

GOP – Government of the Philippines.

Infrastructure Projects – Include the construction, improvement, rehabilitation, demolition, repair, restoration or maintenance of roads and bridges, railways, airports, seaports, communication facilities, civil works components of information technology projects, irrigation, flood control and drainage, water supply, sanitation, sewerage and solid waste management systems, shore protection, energy/power and electrification facilities, national buildings, school buildings, hospital buildings, and other related construction projects of the government. Also referred to as *civil works or works*. (2016 revised IRR, Section 5[u])

LGUs – Local Government Units.

NFCC – Net Financial Contracting Capacity.

NGA – National Government Agency.

PCAB – Philippine Contractors Accreditation Board.

PhilGEPS - Philippine Government Electronic Procurement System.

Procurement Project – refers to a specific or identified procurement covering goods, infrastructure project or consulting services. A Procurement Project shall be described, detailed, and scheduled in the Project Procurement Management Plan prepared by the agency which shall be consolidated in the procuring entity's Annual Procurement Plan. (GPPB Circular No. 06-2019 dated 17 July 2019)

PSA – Philippine Statistics Authority.

SEC – Securities and Exchange Commission.

SLCC – Single Largest Completed Contract.

UN – United Nations.



Section I. Invitation to Bid

Republic of the Philippines
DEPARTMENT OF PUBLIC WORKS AND HIGHWAYS
BULACAN 1ST District Engineering Office
Tikay, City of Malolos, Bulacan



INVITATION TO BID

For

Contract ID No. 24CC0265- CONSTRUCTION OF REINFORCED CONCRETE FLOOD CONTROL STRUCTURE ALONG TABANG RIVER, BARANGAY TIBIG, BULAKAN, BULACAN

1. The **DPWH, Bulacan 1st District Engineering Office**, through the **Government of the Philippines – FY 2024 GAA** intends to apply the sum of **Seventy Two Million Three Hundred and Seventy Four Thousand Nine Hundred Ninety Eight Pesos and twenty five centavos (P72,374,998.25)** being the Approved Budget for the Contract (ABC) to payments under the contract for **Contract ID 24CC0265- Construction of Reinforced Concrete Flood Control Structure along Tabang River, Barangay Tibig, Bulakan, Bulacan**. Bids received in excess of the ABC shall be automatically rejected at bid opening.
2. The **DPWH, Bulacan 1st District Engineering Office** through its Bids and Awards Committee now invites bids for the hereunder Works:

Name of Contract	:	Construction of Reinforced Concrete Flood Control Structure along Tabang River, Barangay Tibig
Contract ID No.	:	24CC0265
Locations	:	Bulakan, Bulacan
Scope of Works	:	Construction of Reinforced Concrete Flood Control Structure, using 15.00m and 9.00m-length steel sheet pile (front and back) with net length =194.80 l.m. and surplus unclassified excavation =1,031.47 cu.m.
Approved Budget for the Contract	:	P72,374,998.25
Contract Duration	:	240 c.d.
Amount of Bidding Documents	:	Fifty Thousand Pesos (P50,000.00)
PCAB License	:	Category of B for Medium A

3. Prospective Bidders should be (1) registered with and classified by the Philippine Contractors Accreditation Board (PCAB) with **PCAB LICENSE Category shown above**. The description of an eligible Bidder is contained in the Bidding Documents, particularly, in Section II and III of Bidding Documents.

Contractors/applicants who wish to participate in this bidding are encouraged to enroll in the DPWH Civil Works Application (CWA) at the DPWH Procurement Service (PrS), 5th Floor, DPWH Bldg., Bonifacio Drive, Port Area, Manila, while those already enrolled shall keep their records current and updated. The Contractor's eligibility to bid on the project will be determined using the DPWH

Contractor Profile Eligibility Process (CPEP) and subject to further post-qualification. Information on registration can be obtained from the PrS during working weekdays from 7:00 am to 4:00 pm or at the DPWH website www.dpwh.gov.ph.

4. Bidding will be conducted through open competitive bidding procedures using non-discretionary pass/fail criterion as specified in the 2016 Revised Implementing Rules and Regulations (IRR) of Republic Act 9184 (RA 9184), otherwise known as the "Government Procurement Reform Act". The contract shall be awarded to the Lowest Calculated Responsive Bidder (LCRB) who was determined as such during post-qualification.
5. Interested bidders may obtain further information from the **DPWH – Bulacan 1st District Engineering Office** and inspect the Bidding Documents at the **Office of the BAC Secretariat, DPWH- Bulacan 1st DEO, Tikay, City of Malolos, Bulacan** during weekdays from **8:00 am to 5:00 pm**.
6. A complete set of Bidding Documents may be acquired by interested bidders on **February 8, 2024 to February 29, 2024** from the address below and upon payment of the applicable fee for the Bidding Documents, pursuant to the latest Guidelines issued by the GPPB, in the amount stated above
7. It may also be downloaded free of charge from the website of the Philippine Government Electronic Procurement System (PhilGEPS), and the website of the Procuring Entity, provided that bidders shall pay the applicable fee for the Bidding Documents not later than the submission of their bids.
8. The **DPWH – Bulacan 1st District Engineering Office** will hold a Pre-Bid Conference on **February 15, 2024 at 3:00 P.M.** at the **Multi-Purpose Hall, Bulacan 1st District Engineering Office, Tikay, City of Malolos, Bulacan**, through live streaming on Facebook: [www.facebook.com/DPWH Bulacan 1st DEO - BAC](https://www.facebook.com/DPWHBulacan1stDEO-BAC) and shall be open to prospective bidders or bidder's representatives who choose to attend the activity, subject to existing health protocol.
9. Bid submission maybe done manually or electronically/online. However, bidders should only select one mode of submission, either manual or electronic. Similar to manual submission, the guidelines for the preparation and submission of an electronic bid are contained in the **BDS**.
10. Bids must be duly received by the BAC Secretariat at the address below for manual submission or at electronicbids_bulacan1@dpwh.gov.ph for electronic submission on or before **February 29, 2024 at 10:00 A.M.** All bids must be accompanied by a bid security in any of the acceptable forms and in the amount stated in **ITB** Clause 15.
11. Bid opening shall be on **February 29, 2024 right after the deadline for the submission of bids** at the **Multi-Purpose Hall, Bulacan 1st District Engineering Office, Tikay, City of Malolos, Bulacan** and can be viewed through live streaming on Facebook: [www.facebook.com/DPWH Bulacan 1st DEO - BAC](https://www.facebook.com/DPWHBulacan1stDEO-BAC) and shall be open to prospective bidders or bidder's representatives who choose to attend the activity, subject to existing health protocol. Late bids shall not be accepted.
12. The **DPWH – Bulacan 1st District Engineering Office** reserves the right to reject any and all bids, declare a failure of bidding, or not award the contract at any time prior to contract award in accordance with Section 35.6 and Section 41 of RA 9184 and its IRR, without thereby incurring any liability to the affected bidder or bidders.
13. For downloading of Bidding Documents you may visit:

DPWH Website: www.dpwh.gov.ph

PhilGEPS Website: www.philgeps.gov.ph

14. For further information, please refer to:
BENEDICT J. MATAWARAN

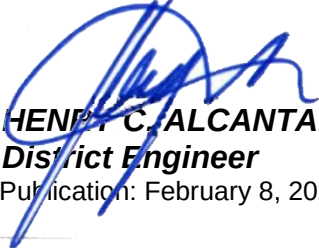
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ERNEST O. GALANG
BAC – Chairperson

NOTED:



HENRY C. ALCANTARA
District Engineer
Date of Publication: February 8, 2024– February 29, 2024

Section II. Instructions to Bidders

1. Scope of Bid

The Procuring Entity, *DPWH Bulacan 1st District Engineering Office* invites Bids for the **Construction of Reinforced Concrete Flood Control Structure along Tabang River, Barangay Tibig, Bulakan, Bulacan** with Project Identification Number **24CC0265**.

The Procurement Project (referred to herein as “Project”) is for the construction of Works, as described in Section VI (Specifications).

2. Funding Information

2.1. The GOP through the source of funding as indicated below for FY 2024 GAA in the amount of *Seventy Five Million Pesos (P 75,000,000.00)*.

3. Bidding Requirements

The Bidding for the Project shall be governed by all the provisions of RA No. 9184 and its 2016 revised IRR, including its Generic Procurement Manual and associated policies, rules and regulations as the primary source thereof, while the herein clauses shall serve as the secondary source thereof.

Any amendments made to the IRR and other GPPB issuances shall be applicable only to the ongoing posting, advertisement, or invitation to bid by the BAC through the issuance of a supplemental or bid bulletin.

The Bidder, by the act of submitting its Bid, shall be deemed to have inspected the site, determined the general characteristics of the contracted Works and the conditions for this Project, such as the location and the nature of the work; (b) climatic conditions; (c) transportation facilities; (c) nature and condition of the terrain, geological conditions at the site communication facilities, requirements, location and availability of construction aggregates and other materials, labor, water, electric power and access roads; and (d) other factors that may affect the cost, duration and execution or implementation of the contract, project, or work and examine all instructions, forms, terms, and project requirements in the Bidding Documents.

4. Corrupt, Fraudulent, Collusive, Coercive, and Obstructive Practices

The Procuring Entity, as well as the Bidders and Contractors, shall observe the highest standard of ethics during the procurement and execution of the contract. They or through an agent shall not engage in corrupt, fraudulent, collusive, coercive, and obstructive practices defined under Annex “I” of the 2016 revised IRR of RA No. 9184 or other integrity violations in competing for the Project.

5. Eligible Bidders

- 5.1. Only Bids of Bidders found to be legally, technically, and financially capable will be evaluated.
- 5.2. The Bidder must have an experience of having completed a Single Largest Completed Contract (SLCC) that is similar to this Project, equivalent to at least fifty percent (50%) of the ABC adjusted, if necessary, by the Bidder to current prices using the PSA's CPI, except under conditions provided for in Section 23.4.2.4 of the 2016 revised IRR of RA No. 9184.

A contract is considered to be "similar" to the contract to be bid if it has the major categories of work stated in the **BDS**.

- 5.3. For Foreign-funded Procurement, the Procuring Entity and the foreign government/foreign or international financing institution may agree on another track record requirement, as specified in the Bidding Document prepared for this purpose.
- 5.4. The Bidders shall comply with the eligibility criteria under Section 23.4.2 of the 2016 IRR of RA No. 9184.

6. Origin of Associated Goods

There is no restriction on the origin of Goods other than those prohibited by a decision of the UN Security Council taken under Chapter VII of the Charter of the UN.

7. Subcontracts

- 7.1. The Bidder may subcontract portions of the Project to the extent allowed by the Procuring Entity as stated herein, but in no case more than fifty percent (50%) of the Project.

The Procuring Entity has prescribed that:

- a. Subcontracting is not allowed.

- 7.1. *[If Procuring Entity has determined that subcontracting is allowed during the bidding, state:]* The Bidder must submit together with its Bid the documentary requirements of the subcontractor(s) complying with the eligibility criteria stated in **ITB** Clause 5 in accordance with Section 23.4 of the 2016 revised IRR of RA No. 9184 pursuant to Section 23.1 thereof.

- 7.2. *[If subcontracting is allowed during the contract implementation stage, state:]* The Supplier may identify its subcontractor during the contract implementation stage. Subcontractors identified during the bidding may be changed during the implementation of this Contract. Subcontractors must submit the documentary requirements under Section 23.1 of the 2016 revised IRR of RA No. 9184 and

comply with the eligibility criteria specified in **ITB** Clause 5 to the implementing or end-user unit.

- 7.3. Subcontracting of any portion of the Project does not relieve the Contractor of any liability or obligation under the Contract. The Supplier will be responsible for the acts, defaults, and negligence of any subcontractor, its agents, servants, or workmen as fully as if these were the Contractor's own acts, defaults, or negligence, or those of its agents, servants, or workmen.

8. Pre-Bid Conference

The Procuring Entity will hold a pre-bid conference for this Project on the specified date and time and either at its physical address **Multi-Purpose Hall, DPWH Bulacan 1st District Engineering Office, Tikay, City of Malolos, Bulacan** and/or through videoconferencing/webcasting as indicated in paragraph 8 of the **IB**.

9. Clarification and Amendment of Bidding Documents

Prospective bidders may request for clarification on and/or interpretation of any part of the Bidding Documents. Such requests must be in writing and received by the Procuring Entity, either at its given address or through electronic mail indicated in the **IB**, at least ten (10) calendar days before the deadline set for the submission and receipt of Bids.

10. Documents Comprising the Bid: Eligibility and Technical Components

- 10.1. The first envelope shall contain the eligibility and technical documents of the Bid as specified in **Section IX. Checklist of Technical and Financial Documents**.
- 10.2. If the eligibility requirements or statements, the bids, and all other documents for submission to the BAC are in foreign language other than English, it must be accompanied by a translation in English, which shall be authenticated by the appropriate Philippine foreign service establishment, post, or the equivalent office having jurisdiction over the foreign bidder's affairs in the Philippines. For Contracting Parties to the Apostille Convention, only the translated documents shall be authenticated through an apostille pursuant to GPPB Resolution No. 13-2019 dated 23 May 2019. The English translation shall govern, for purposes of interpretation of the bid.
- 10.3. A valid PCAB License is required, and in case of joint ventures, a valid special PCAB License, and registration for the type and cost of the contract for this Project. Any additional type of Contractor license or permit shall be indicated in the **BDS**.
- 10.4. A List of Contractor's key personnel (e.g., Project Manager, Project Engineers, Materials Engineers, and Foremen) assigned to the contract to be bid, with their complete qualification and experience data shall be provided. These key personnel must meet the required minimum years of experience set in the **BDS**.

- 10.5. A List of Contractor's major equipment units, which are owned, leased, and/or under purchase agreements, supported by proof of ownership, certification of availability of equipment from the equipment lessor/vendor for the duration of the project, as the case may be, must meet the minimum requirements for the contract set in the **BDS**.

11. Documents Comprising the Bid: Financial Component

- 11.1. The second bid envelope shall contain the financial documents for the Bid as specified in **Section IX. Checklist of Technical and Financial Documents**.
- 11.2. Any bid exceeding the ABC indicated in table provided in paragraph 2 of the **IB** shall not be accepted.
- 11.3. For Foreign-funded procurement, a ceiling may be applied to bid prices provided the conditions are met under Section 31.2 of the 2016 revised IRR of RA No. 9184.

12. Alternative Bids

Bidders shall submit offers that comply with the requirements of the Bidding Documents, including the basic technical design as indicated in the drawings and specifications. Unless there is a value engineering clause in the **BDS**, alternative Bids shall not be accepted.

13. Bid Prices

All bid prices for the given scope of work in the Project as awarded shall be considered as fixed prices, and therefore not subject to price escalation during contract implementation, except under extraordinary circumstances as determined by the NEDA and approved by the GPPB pursuant to the revised Guidelines for Contract Price Escalation guidelines.

14. Bid and Payment Currencies

- 14.1. Bid prices may be quoted in the local currency or tradeable currency accepted by the BSP at the discretion of the Bidder. However, for purposes of bid evaluation, Bids denominated in foreign currencies shall be converted to Philippine currency based on the exchange rate as published in the BSP reference rate bulletin on the day of the bid opening.

- 14.2. *Payment of the contract price shall be made in:*

- a. **Philippine Pesos**

15. Bid Security

- 15.1. The Bidder shall submit a Bid Securing Declaration or any form of Bid Security in the amount indicated in the **BDS**, which shall be not less than the percentage of the ABC in accordance with the schedule in the **BDS**.
- 15.2. The Bid and bid security shall be valid until **120 c.d. after the opening of bids**. Any bid not accompanied by an acceptable bid security shall be rejected by the Procuring Entity as non-responsive.

16. Sealing and Marking of Bids

Each Bidder shall submit one copy of the first and second components of its Bid.

The Procuring Entity may request additional hard copies and/or electronic copies of the Bid. However, failure of the Bidders to comply with the said request shall not be a ground for disqualification.

If the Procuring Entity allows the submission of bids through online submission to the given website or any other electronic means, the Bidder shall submit an electronic copy of its Bid, which must be digitally signed. An electronic copy that cannot be opened or is corrupted shall be considered non-responsive and, thus, automatically disqualified.

17. Deadline for Submission of Bids

The Bidders shall submit on the specified date and time and either at its physical address or through online submission as indicated in paragraph 10 of the **IB**.

18. Opening and Preliminary Examination of Bids

- 18.1. The BAC shall open the Bids in public at the time, on the date, and at the place specified in paragraph 10 of the **IB**. The Bidders' representatives who are present shall sign a register evidencing their attendance. In case videoconferencing, webcasting or other similar technologies will be used, attendance of participants shall likewise be recorded by the BAC Secretariat.

In case the Bids cannot be opened as scheduled due to justifiable reasons, the rescheduling requirements under Section 29 of the 2016 revised IRR of RA No. 9184 shall prevail.

- 18.2. The preliminary examination of Bids shall be governed by Section 30 of the 2016 revised IRR of RA No. 9184.

19. Detailed Evaluation and Comparison of Bids

- 19.1. The Procuring Entity's BAC shall immediately conduct a detailed evaluation of all Bids rated "*passed*" using non-discretionary pass/fail criteria. The BAC shall consider the conditions in the evaluation of Bids under Section 32.2 of 2016 revised IRR of RA No. 9184.
- 19.2. If the Project allows partial bids, all Bids and combinations of Bids as indicated in the **BDS** shall be received by the same deadline and opened and evaluated simultaneously so as to determine the Bid or combination of Bids offering the

lowest calculated cost to the Procuring Entity. Bid Security as required by **ITB** Clause 15 shall be submitted for each contract (lot) separately.

- 19.3. In all cases, the NFCC computation pursuant to Section 23.4.2.6 of the 2016 revised IRR of RA No. 9184 must be sufficient for the total of the ABCs for all the lots participated in by the prospective Bidder.

20. Post Qualification

Within a non-extendible period of five (5) calendar days from receipt by the Bidder of the notice from the BAC that it submitted the Lowest Calculated Bid, the Bidder shall submit its latest income and business tax returns filed and paid through the BIR Electronic Filing and Payment System (eFPS), and other appropriate licenses and permits required by law and stated in the **BDS**.

21. Signing of the Contract

The documents required in Section 37.2 of the 2016 revised IRR of RA No. 9184 shall form part of the Contract. Additional Contract documents are indicated in the **BDS**.

Section III. Bid Data Sheet

BID DATA SHEET

ITB Clause											
1.1	The Procuring Entity is DPWH – Bulacan 1st District Engineering Office The scope of the Works under this Contract is Construction of Reinforced Concrete Flood Control Structure, using 15.00m and 9.00m-length steel sheet pile (front and back) with net length =194.80 l.m. and surplus unclassified excavation =1,031.47 cu.m. The Contract Name is Construction of Reinforced Concrete Flood Control Structure along Tabang River, Barangay Tibig, Bulakan, Bulacan The Contract ID is Contract ID 24CC0265										
2.	The Approved Budget for the Contract is Seventy Two Million Three Hundred and Seventy Four Thousand Nine Hundred Ninety Eight Pesos and twenty five centavos (P72,374,998.25) The Funding Source is the Government of the Philippines through FY 2024 GAA The name of the Project is Construction of Reinforced Concrete Flood Control Structure along Tabang River, Barangay Tibig, Bulakan, Bulacan										
5.2	Bidding is restricted to eligible bidders as defined in ITB Clause 5 <i>Semi-Permanent Structures: Five (5) years Buildings of types 1, 2, and 3 as classified under the National Building Code of the Philippines, concrete/asphalt roads, concrete river control, drainage, irrigation lined canals, river landing, deep wells, rock causeway, pedestrian overpass, and other similar semi-permanent structures</i> <table><tr><th>Major Work Category Code</th><th>Major Work Category Description</th><th>Similar Work Category Code</th><th>Similar Work Category Description</th></tr><tr><td rowspan="2">FCSPS</td><td rowspan="2">Flood Control: Construction - Slope Protection using Structural Measures (e.g. Revetment, Retaining structures, Wirenet)</td><td>RCSPS</td><td>Roads: Construction - Slope Protection using Structural Measures (e.g. Revetment, Retaining structures, Wirenet)</td></tr><tr><td>FHR</td><td>Flood Control: Hydraulics - River Control *</td></tr></table>	Major Work Category Code	Major Work Category Description	Similar Work Category Code	Similar Work Category Description	FCSPS	Flood Control: Construction - Slope Protection using Structural Measures (e.g. Revetment, Retaining structures, Wirenet)	RCSPS	Roads: Construction - Slope Protection using Structural Measures (e.g. Revetment, Retaining structures, Wirenet)	FHR	Flood Control: Hydraulics - River Control *
Major Work Category Code	Major Work Category Description	Similar Work Category Code	Similar Work Category Description								
FCSPS	Flood Control: Construction - Slope Protection using Structural Measures (e.g. Revetment, Retaining structures, Wirenet)	RCSPS	Roads: Construction - Slope Protection using Structural Measures (e.g. Revetment, Retaining structures, Wirenet)								
		FHR	Flood Control: Hydraulics - River Control *								

			PHC	Ports/ Harbors: Causeway *																		
			FHD	Flood Control: Hydraulics - Dam *																		
7.1	Subcontracting is not allowed.																					
7.3	“Not applicable.”																					
8	The Procuring Entity will hold a Pre-Bid Conference for this Project on February 15, 2024 at 3:00 P.M.. at Multi-Purpose Hall of DPWH Bulacan 1st District Engineering Office Tikay, City of Malolos, Bulacan or through video-conferencing/webcasting via FB page : DPWH Bulacan 1st DEO – BAC which shall be open to prospective bidders or bidder’s representatives who choose to attend the activity, subject to existing health protocol																					
10	The Procuring Entity’s address is: ERNESTO C. GALANG BAC Chairperson (044) 794-2245 loc. 31435 <u>dpwhbul1deo@gmail.com</u>																					
14	No further instructions.																					
10.4	The minimum work experience requirements for the key personnel are the following: <table><tr><th>Key Personnel</th><th>Min. Years of Similar Experience (Same Position)</th><th>Min. Years of Total Work Experience (Same Position)</th></tr><tr><td>Project Manager</td><td>8 years</td><td>8 years</td></tr><tr><td>Project Engineer</td><td>7 years</td><td>7 years</td></tr><tr><td>Materials Engineer</td><td>6 years</td><td>6 years</td></tr><tr><td>Safety Officer</td><td colspan="2">With COSH Training</td></tr><tr><td>Construction Foreman</td><td>5 years</td><td>8 years</td></tr></table> Accredited Safety Officer (Required Upon issuance of Notice of Award) subject to D.O 98 Series of 2014: Submission of Construction Safety and Health Program Approved by the Department of Labor and Employment (DOLE). First Aider w/ certificate of Training issued by RED CROSS in compliance to DOLE requirements for the approval of Construction Safety & Health Program (Required Upon issuance of Notice of Award) subject to D.O 98 Series of 2014:				Key Personnel	Min. Years of Similar Experience (Same Position)	Min. Years of Total Work Experience (Same Position)	Project Manager	8 years	8 years	Project Engineer	7 years	7 years	Materials Engineer	6 years	6 years	Safety Officer	With COSH Training		Construction Foreman	5 years	8 years
Key Personnel	Min. Years of Similar Experience (Same Position)	Min. Years of Total Work Experience (Same Position)																				
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Project Engineer	7 years	7 years																				
Materials Engineer	6 years	6 years																				
Safety Officer	With COSH Training																					
Construction Foreman	5 years	8 years																				

	Submission of Construction Safety and Health Program Approved by the Department of Labor and Employment (DOLE). The key personnel should meet the following number of years' work experience. 1. The experience means total years of civil works experience (of any nature in construction and engineering consultancy services) 2. Include the Tax Identification Number (TIN) of the Key Personnel. Compliance to D.O. 98 series of 2016: Revised Guidelines on the Accreditation of Contractors'/Consultants' Materials Engineer. 3. Include the contact number of the Materials Engineer																																																																									
10.5	1) The minimum major equipment requirements are the following: <table><tr><th>Description</th><th>Capacity</th><th>Required Units</th></tr><tr><td>Dump Truck</td><td>(12 cu.yd)</td><td>2 units</td></tr><tr><td>Backhoe</td><td>(0.80 cu.m.), SE 130 LC-2</td><td>2 units</td></tr><tr><td>Motorized Road Grader</td><td>G710A</td><td>1 unit</td></tr><tr><td>Vibratory Roller</td><td>(10 mt), SD100DC</td><td>1 unit</td></tr><tr><td>Water Truck/Pump</td><td>(16000 L)</td><td>1 unit</td></tr><tr><td>Deck Barge</td><td>Non-Propelled, 41.16mx1.35mx2.31m (600tons DWT)</td><td>2 units</td></tr><tr><td>Tugboat</td><td>500hp</td><td>1 unit</td></tr><tr><td>Backhoe w/ Breaker</td><td>(0.80 cu.m.), SE 130 LC-2</td><td>1 unit</td></tr><tr><td>Cutting Outfit</td><td></td><td>1 unit</td></tr><tr><td>Bar Bender</td><td>25 mm Maximum Rebar dia., Three Phase</td><td>1 unit</td></tr><tr><td>Bar Cutter</td><td>25 mm Maximum Rebar dia. (Grade 40), Single Phase</td><td>1 unit</td></tr><tr><td>Crawler Crane</td><td>(36-40 mt)</td><td>1 unit</td></tr><tr><td>Boom Truck</td><td>(2-5 mt)</td><td>1 unit</td></tr><tr><td>One Bagger Mixer</td><td>(4-6 cu.ft.)</td><td>1 unit</td></tr><tr><td>Concrete Vibrator</td><td>Flexible Shaft Type 2" dia with 5 Amperes Gasoline Drive Unit</td><td>1 unit</td></tr><tr><td>Welding Machine</td><td>(300 A), Gas/Diesel Driven</td><td>1 unit</td></tr><tr><td>Vibro Hammer</td><td>(60 ton), DPD600T Hydraulic Pile Driver</td><td>1 unit</td></tr><tr><td>Payloader</td><td>(1.50 cu.m.)</td><td>1 unit</td></tr><tr><td>Stake/Cargo Truck</td><td>(10 T)</td><td>1 unit</td></tr><tr><td>Truck Mounted Crane</td><td>(41-45 mt)</td><td>1 unit</td></tr><tr><td>Generator Set</td><td></td><td>1 unit</td></tr><tr><td>Bulldozer</td><td></td><td>1 unit</td></tr></table> 2) Laboratory Equipment <table><tr><td>Required No. of Units</td><td>Minimum Capacity/Unit</td></tr></table>			Description	Capacity	Required Units	Dump Truck	(12 cu.yd)	2 units	Backhoe	(0.80 cu.m.), SE 130 LC-2	2 units	Motorized Road Grader	G710A	1 unit	Vibratory Roller	(10 mt), SD100DC	1 unit	Water Truck/Pump	(16000 L)	1 unit	Deck Barge	Non-Propelled, 41.16mx1.35mx2.31m (600tons DWT)	2 units	Tugboat	500hp	1 unit	Backhoe w/ Breaker	(0.80 cu.m.), SE 130 LC-2	1 unit	Cutting Outfit		1 unit	Bar Bender	25 mm Maximum Rebar dia., Three Phase	1 unit	Bar Cutter	25 mm Maximum Rebar dia. (Grade 40), Single Phase	1 unit	Crawler Crane	(36-40 mt)	1 unit	Boom Truck	(2-5 mt)	1 unit	One Bagger Mixer	(4-6 cu.ft.)	1 unit	Concrete Vibrator	Flexible Shaft Type 2" dia with 5 Amperes Gasoline Drive Unit	1 unit	Welding Machine	(300 A), Gas/Diesel Driven	1 unit	Vibro Hammer	(60 ton), DPD600T Hydraulic Pile Driver	1 unit	Payloader	(1.50 cu.m.)	1 unit	Stake/Cargo Truck	(10 T)	1 unit	Truck Mounted Crane	(41-45 mt)	1 unit	Generator Set		1 unit	Bulldozer		1 unit	Required No. of Units	Minimum Capacity/Unit
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	<u>Please refer to D.O. 11, Series of 2017 for the minimum materials testing equipment and D.O. 127, Series of 2018, Strict Application of R.A. 9184 in the conduct of Post-Qualification of Bidders with Delayed On-Going Contracts with the DPWH.</u>
11.2	The ABC is P72,374,998.25 . Any bid with a financial component exceeding this amount shall not be accepted.”
12	“No further instructions.”
15.1	The bid security shall be limited to a Bid Securing Declaration or one of the following forms in accordance with the following amounts: 1. The amount of not less than 2% of ABC, if bid security is in cash, cashier's/manager's check, bank draft/guarantee or irrevocable letter of credit; 2. The amount of not less than 5% of ABC, if bid security is in Surety Bond.
15.2	The Bid Security shall be valid until 120 calendar days from the date set for bid opening.
17	The specific identification of this bidding process is Contract ID 24CC0265 - Construction of Reinforced Concrete Flood Control Structure along Tabang River, Barangay Tibig, Bulacan, Bulacan Bid submission maybe done manually or electronically/online. However, bidders should only select one mode of submission, either manual or electronic. The address for receipt of Bids submitted manually is Office of the BAC Secretariat, DPWH Bulacan 1st DEO, Tikay, City of Malolos, Bulacan. The deadline for receipt of Bids is on February 29, 2024 at 10:00 A.M. For bids to be submitted electronically/online, the following procedures should be observed following D.O. 87 series of 2020: 1. Submission of electronic Official Receipt of purchase of the Bidding Documents Prior to the deadline of submission of bids, the prospective bidders shall send an e-mail with subject “Official Receipt for 24CC0265” to electronicbids_bulacan1@dpwh.gov.ph. Attached to the said e-mail is the copy of the Official Receipt of purchase of bidding documents in Portable Document File (PDF) format with file name in the format “<PCAB ID>_<CONTRACT ID>_OfficialReceipt.pdf”. For example, the filename of the attached PDF containing the Official Receipt of the Contractor with PCAB ID No. 12345, who intends to participate in the bidding of Contract ID No. 20Z00123 shall be

	"12345_20Z00123_OfficialReceipt.pdf". Further, the e-mail subject would be "Official Receipt for 20Z00123". In case a prospective bidder originally intends to join the bidding as a Joint Venture (referred as "original bidder"), has been issued an Official Receipt of purchase of bidding documents and has submitted the electronic Official Receipt, but eventually decided to join the bidding with new members or as individual contractors (referred as "regrouped bidder"), or vice-versa, the "regrouped bidder" should purchase a new bidding document to be issued with the corresponding Official Receipt in their name and submit the electronic Official Receipt following the same procedures. 2. Confirmation of the electronically submitted Official Receipt 2.1 An e-mail shall be received by a prospective bidder confirming its successful submission of the Official Receipt as required under Item 1. Only the electronic bids of bidders who have successfully submitted an electronic Official Receipt shall be accepted. 2.2 An e-mail shall also be received by a prospective bidder in instances where their sent e-mail related to Item 1: a. Has incorrect subject Contract ID, which means that a corresponding folder with the same Contract ID does not exist in the eBid Portal; b. Has no attachment; c. Has an attachment but is not in the prescribed format; d. Has more than one (1) attachment; or e. Was received after the deadline of bid submission. For the foregoing cases, the prospective bidders should rectify/correct the noted deficiency/ies to comply with the requirements under Item 1 for its electronic bid to be accepted. 3. Preparation and submission of an electronic Bid The prospective bidders shall prepare and submit their bids electronically following the steps prescribed under with D.O. 87 series of 2020 in accordance with GPPB Resolution No. 09-2020 as follows: a. Following GPPB Resolution No. 09-2020, a bidder has the option to submit bid electronically. However, If a bidder chooses to submit an electronic bid, the same bidder can no longer submit a bid manually for the same contract, and vice versa. b. Similar to manual submission, prospective bidders shall prepare their bids in two (2) file folders, each for the Technical and Financial Components. The file name of the Technical and Financial Components folders should be in the format <PCAB ID>_<CONTRACT_ID>_TECHNICAL and <PCAB ID>_<CONTRACT_ID>_FINANCIAL (e.g.
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	12345_20Z00123_TECHNICAL, 12345_20Z00123_FINANCIAL). Subsequently, each of the Technical and Financial Components file folders shall be COMPRESSED, PASSWORD PROTECTED and NAMED in the format <PCAB ID>_<CONTRACT_ID>_TECHNICAL.zip (or .rar/.7z) and <PCAB ID>_<CONTRACT_ID>_FINANCIAL.zip (or .rar/.7z), respectively (e.g. 12345_20Z00123_TECHNICAL.zip, 12345_20Z00123_FINANCIAL.zip). c. Each file contained in the Technical and Financial Components file folders shall be in PDF format (either scanned or exported/published), with file name in the format <PCAB ID>_<CONTRACT ID>_DescriptiveFilename.pdf (e.g. 12345_20Z00123_PCABLicense.pdf, 12345_20Z00123_OmnibusSwornStatement.pdf). d. The compressed archive file folders of the Technical and Financial components shall be compiled in a PASSWORD PROTECTED COMPRESSED ARCHIVE MAIN FILE FOLDER with filename in the format <PCAB>_<CONTRACT ID>_Bid(e.g. 12345_20Z00123_Bid). In case the total file size of the main archive file folder is more than the allowable size of an attachment per e-mail of the prospective bidder's e-mail service provider (e.g. Gmail, Yahoo Mail, Outlook), they shall need to split its electronic bid into two or more PASSWORD PROTECTED COMPRESSED ARCHIVE MAIN FILE FOLDERS. e. The e-mail submitting the prospective bidder's electronic bid should have a Subject in the format "Bid Submission for 24CC0265" (e.g. "Bid Submission for 20Z00123"). In case of multiple compressed archive main file folders, it shall be submitted in multiple e-mails, each with Subject in the format "Bid Submission [Insert Number of main archive folder]/[Insert total number of main archive folders] for [contract id]" (e.g. "Bid Submission 1/2 for 20Z00123" and "Bid Submission 2/2 for 20Z00123"). f. The prospective bidder shall submit its electronic bid to electronicbids_bulacan1@dpwh.gov.ph using the prospective bidder's e-mail address registered in the Civil Works Application (CWA). In case prospective bidders are not yet registered, they can use any e-mail address, subject to the verification of the BAC Secretariat. 4. Modification of an electronic bid If a bidder wishes to modify its electronic bid, he may do so following the procedures in the manual submission of bid or he may choose to submit his modification electronically in the same
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	format prescribed in the preparation and submission of an electronic bid, except that the subject of the e-mail submitting the bid modification shall be labelled "Bid Modification X for <Contract ID>", where "X" represents the number of bid modification submitted. For example, the subject of an e-mail submitting a first bid modification for Contract ID No. 20Z00123 should be "Bid Modification 1 for 20Z00123". 5. Non-participation in the Bidding In case a prospective bidder that have purchased a bidding document decided not to participate, he may choose to submit his letter of non-participation manually or electronically. In case of electronic submission, the contractor shall send an e-mail with the Subject "Non-participation for <Contract ID>" with the letter of non-participation as attachment with file name "<PCAB ID>_<CONTRACT ID>_Non-Participation.pdf". This e-mail should be sent to <i>electronicbids_bulacan1@dpwh.gov.ph</i> before the deadline for bid submission. 6. Withdrawal of Electronic Bid Bids may only be withdrawn prior the deadline for bid submission. In case of withdrawal of an electronic bid, the bidder shall send an e-mail with the subject "Bid Withdrawal for <Contract ID>" and the letter of bid withdrawal in pdf format with filename "<PCAB ID>_<CONTRACT ID>_BidWithdrawal.pdf" shall be attached. This e-mail should be sent to <i>electronicbids_bulacan1@dpwh.gov.ph</i> before the deadline for bid submission. 7. Opening of the electronic bid Only during the actual opening of bids shall the bidder disclose the passwords for his electronic bid. This can be done by the bidder's authorized representative verbally in person, through phone call, online platforms (e.g. videoconferencing, webcasting), or through writing. In all cases, the bidders will have only three (3) attempts or fifteen (15) minutes, whichever comes first, to provide the correct password. Otherwise, the bidder shall be disqualified except in unforeseen justifiable circumstances. The bidder may also be subjected to the three-strike policy (D.O. 17, Series of 2015) as warranted by the circumstances. If the bidder chooses to disclose the password through phone call, he should make sure that the contact numbers as recorded in the Civil Works Application are open when the BAC calls to ask for the password. The bidder may also choose to call the BAC number <i>(044)794-2245 loc. 31448</i> during the bid opening time and wait for the opening of his bid for him to disclose the password. For online call/video calls, the bidder may call the BAC Messenger/Skype account <i>DPWH Bulacan 1st DEO-BAC</i>. If the bidder chooses to attend the bid opening through online conference, the bidder should join the meeting using the following link / fb page : <i>DPWH Bulacan 1st DEO=BAC</i>
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	If the bidder chooses to disclose the passwords through writing, the letters for password 1 (Main File Folder/Technical Component File Folder) and password 2 (Financial Component File Folder) should be enclosed in separate envelopes with the sender details (AMO, Bidder Name, Address) addressed to the BAC Chairperson, with the details of the bidding (Contract ID, Contract Name, Bid Opening Date and Time), signed and sealed, with a remark "Password [Insert 1 or 2]. Do not open before actual bid opening date and time". All electronic bids (Password protected compressed archive main file folder/s) shall be opened 1st for the opening of the Technical Component compressed archive file folder/s. This shall be followed by the opening of the bids submitted manually for the opening of the Technical Component Envelopes. The same procedures apply for the Financial Component compressed archive file folder/s and financial component envelopes. If the electronic bid or file within it was found to be damaged, could not be extracted or opened, the bid shall be considered "Failed". If the electronic bid is not password-protected or is not in the required format, the bid shall still be accepted provided that the bidder acknowledges such condition. The BAC shall assume no responsibility for the misplacement of the contents of the contents of the improperly sealed or marked bid, or improperly compressed or password-protected folder, or for its premature opening. 8. File name convention in case of a Joint Venture Bidder For Joint Venture (JV), the format of PCAB ID to be used by the bidder in naming their files, folders and archives shall be "JV-<PCAB ID of the Lead Member>". For example, if three (3) Contractors with PCAB ID Nos. 12345 (lead member), 67890, and 24680 entered into a JV, the PCAB ID they must use is "JV-12345".
18	The place of opening of Bids is <i>Multi-Purpose Hall, DPWH Bulacan 1st DEO, Tikay, City of Malolos, Bulacan</i> The date and time of opening of Bids are <i>February 29,2024, right after the deadline of the submission of bids.</i>
20	Electronic Bidding in accordance with GPPB Resolution No. 23-2013 will not be adopted for Post-Qualification in this procurement.
21	List additional contract documents relevant to the Project that may be required by existing laws and/or the Procuring Entity, such as construction schedule and S-curve, manpower schedule, construction methods, equipment utilization schedule construction safety and health program approved by the Department of Labor and Employment, and Precedence Diagram Method (PDM).

Section IV. General Conditions of Contract

1. Scope of Contract

This Contract shall include all such items, although not specifically mentioned, that can be reasonably inferred as being required for its completion as if such items were expressly mentioned herein. All the provisions of RA No. 9184 and its 2016 revised IRR, including the Generic Procurement Manual, and associated issuances, constitute the primary source for the terms and conditions of the Contract, and thus, applicable in contract implementation. Herein clauses shall serve as the secondary source for the terms and conditions of the Contract.

This is without prejudice to Sections 74.1 and 74.2 of the 2016 revised IRR of RA No. 9184 allowing the GPPB to amend the IRR, which shall be applied to all procurement activities, the advertisement, posting, or invitation of which were issued after the effectivity of the said amendment.

2. Sectional Completion of Works

If sectional completion is specified in the **Special Conditions of Contract (SCC)**, references in the Conditions of Contract to the Works, the Completion Date, and the Intended Completion Date shall apply to any Section of the Works (other than references to the Completion Date and Intended Completion Date for the whole of the Works).

3. Possession of Site

3.1 The Procuring Entity shall give possession of all or parts of the Site to the Contractor based on the schedule of delivery indicated in the **SCC**, which corresponds to the execution of the Works. If the Contractor suffers delay or incurs cost from failure on the part of the Procuring Entity to give possession in accordance with the terms of this clause, the Procuring Entity's Representative shall give the Contractor a Contract Time Extension and certify such sum as fair to cover the cost incurred, which sum shall be paid by Procuring Entity.

3.2 If possession of a portion is not given by the above date, the Procuring Entity will be deemed to have delayed the start of the relevant activities. The resulting adjustments in contract time to address such delay may be addressed through contract extension provided under Annex "E" of the 2016 revised IRR of RA No. 9184.

4. The Contractor's Obligations

The Contractor shall employ the key personnel named in the Schedule of Key Personnel indicating their designation, in accordance with **ITB** Clause 10.3 and specified in the **BDS**, to carry out the supervision of the Works.

The Procuring Entity will approve any proposed replacement of key personnel only if their relevant qualifications and abilities are equal to or better than those of the personnel listed in the Schedule.

5. Performance Security

- 5.1. Within ten (10) calendar days from receipt of the Notice of Award from the Procuring Entity but in no case later than the signing of the contract by both parties, the successful Bidder shall furnish the performance security in any of the forms prescribed in Section 39 of the 2016 revised IRR.
- 5.2. The Contractor, by entering into the Contract with the Procuring Entity, acknowledges the right of the Procuring Entity to institute action pursuant to RA No. 3688 against any subcontractor be they an individual, firm, partnership, corporation, or association supplying the Contractor with labor, materials and/or equipment for the performance of this Contract.

6. Site Investigation Reports

The Contractor, in preparing the Bid, shall rely on any Site Investigation Reports referred to in the SCC supplemented by any information obtained by the Contractor.

7. Warranty

- 7.1. In case the Contractor fails to undertake the repair works under Section 62.2.2 of the 2016 revised IRR, the Procuring Entity shall forfeit its performance security, subject its property(ies) to attachment or garnishment proceedings, and perpetually disqualify it from participating in any public bidding. All payables of the GOP in his favor shall be offset to recover the costs.
- 7.2. The warranty against Structural Defects/Failures, except that occasioned-on force majeure, shall cover the period from the date of issuance of the Certificate of Final Acceptance by the Procuring Entity. Specific duration of the warranty is found in the SCC.

8. Liability of the Contractor

Subject to additional provisions, if any, set forth in the SCC, the Contractor's liability under this Contract shall be as provided by the laws of the Republic of the Philippines.

If the Contractor is a joint venture, all partners to the joint venture shall be jointly and severally liable to the Procuring Entity.

9. Termination for Other Causes

Contract termination shall be initiated in case it is determined *prima facie* by the Procuring Entity that the Contractor has engaged, before, or during the implementation of the contract, in unlawful deeds and behaviors relative to contract acquisition and implementation, such as, but not limited to corrupt, fraudulent, collusive, coercive, and obstructive practices as stated in ITB Clause 4.

10. Dayworks

Subject to the guidelines on Variation Order in Annex “E” of the 2016 revised IRR of RA No. 9184, and if applicable as indicated in the **SCC**, the Dayworks rates in the Contractor’s Bid shall be used for small additional amounts of work only when the Procuring Entity’s Representative has given written instructions in advance for additional work to be paid for in that way.

11. Program of Work

11.1. The Contractor shall submit to the Procuring Entity’s Representative for approval the said Program of Work showing the general methods, arrangements, order, and timing for all the activities in the Works. The submissions of the Program of Work are indicated in the **SCC**.

11.2. The Contractor shall submit to the Procuring Entity’s Representative for approval an updated Program of Work at intervals no longer than the period stated in the **SCC**. If the Contractor does not submit an updated Program of Work within this period, the Procuring Entity’s Representative may withhold the amount stated in the **SCC** from the next payment certificate and continue to withhold this amount until the next payment after the date on which the overdue Program of Work has been submitted.

12. Instructions, Inspections and Audits

The Contractor shall permit the GOP or the Procuring Entity to inspect the Contractor’s accounts and records relating to the performance of the Contractor and to have them audited by auditors of the GOP or the Procuring Entity, as may be required.

13. Advance Payment

The Procuring Entity shall, upon a written request of the Contractor which shall be submitted as a Contract document, make an advance payment to the Contractor in an amount not exceeding fifteen percent (15%) of the total contract price, to be made in lump sum, or at the most two installments according to a schedule specified in the **SCC**, subject to the requirements in Annex “E” of the 2016 revised IRR of RA No. 9184.

14. Progress Payments

The Contractor may submit a request for payment for Work accomplished. Such requests for payment shall be verified and certified by the Procuring Entity’s Representative/Project Engineer. Except as otherwise stipulated in the **SCC**, materials and equipment delivered on the site but not completely put in place shall not be included for payment.

15. Operating and Maintenance Manuals

- 15.1. If required, the Contractor will provide “as built” Drawings and/or operating and maintenance manuals as specified in the **SCC**.
- 15.2. If the Contractor does not provide the Drawings and/or manuals by the dates stated above, or they do not receive the Procuring Entity’s Representative’s approval, the Procuring Entity’s Representative may withhold the amount stated in the **SCC** from payments due to the Contractor.

Section V. Special Conditions of Contract

Special Conditions of Contract

GCC Clause	
2	<i>N/A</i>
3	<i>The Procuring Entity shall give possession of the Site to the Contractor after the issuance of NTP.</i>
6	No Site Investigation Reports
7.2	<i>No further Instruction</i>
10	No dayworks are applicable to the contract.
11.1	The Contractor shall submit the Program of Work to the Procuring Entity's Representative within <i>ten (10)</i> days of delivery of the Notice of Award.
11.2	The amount to be withheld for late submission of an updated Program of Work is 1% of every Progress Billing of the Contractor
13	The amount of the advance payment is <i>15% of the total contract price in lumpsum.</i>
14	Materials and equipment delivered on the site but not completely put in place shall not be included for payment.
15.1	The date by which operating and maintenance manuals are required is <i>30 days from the completion of the project.</i> The date by which "as built" drawings are required is
15.2	The amount to be withheld for failing to produce "as built" drawings and/or operating and maintenance manuals by the date required is <i>10% of the final contract price.</i>

Section VI. Specifications

DPWH Standards

The DPWH Standard Specifications for Public Works and Highways (“Blue Book”) shall be the main basis for the standards and codes to be met by the goods and materials to be furnished and work performed or tested for the Contract. In particular, Volume II of the Blue Book shall be used if the Contract pertains to Highways, Bridges and Airports. Volume III of the Blue Book shall be used if the Contract pertains to Buildings, Flood Control and Drainage or Water Supply. The Blue Book incorporates standards of the American Association of State Highway and Transportation Officials (AASHTO), American Society for Testing and Materials (ASTM), and American Concrete Institute (ACI), among others, pertaining to construction.

The Procuring Entity shall use the Standard Pay Items in the Project and Contract Management Application (PCMA) in drawing up the Specifications.

Modification of Standards

1. Modifications of and additions to standards and codes as stated in the DPWH Standard Specifications for Public Works and Highways, if any, shall be included in the enclosed Supplemental Specifications, which is part of these Bidding Documents.

2. Entries in the Supplemental Specifications are numbered to coincide with the numbering of items in the DPWH Standard Specifications for Public Works and Highways.

Section VII. Drawings

Please refer to the attached file on Philgeps & DPWH Websites

Section VIII. Bill of Quantities

Bill of Quantities

Contract ID: 24CC0265

Contract Name: Construction of Reinforced Concrete Flood Control Structure along Tabang River, Barangay Tibig

Location of the Contract: Bulakan, Bulacan

BILL OF QUANTITIES

Part No. _____

Part Description: _____

Pay Item No.	Description	Unit	Quantity	Unit Price (Pesos)	Amount (Pesos)
(1)	(2)	(3)	(4)	(5)	(5)
PART A	FACILITIES FOR THE ENGINEER				
A.1.1 (8)	Provision of Field Office for the Engineer (Rental Basis)	mo	8.00	In words: _____ Pesos _____ _____ _____ In figures: Php _____ _____	In figures: _____ Php _____ _____ _____
A.1.1 (11)	Provision of Furnitures/ Fixtures, Equipment & Appliances for the Field Office for the Engineer	I.s.	1.00	In words: _____ Pesos _____ _____ _____	In figures: _____ Php _____ _____ _____

				In figures: Php _____	
PART B	OTHER GENERAL REQUIREMENTS				
B.5 (1)	Project Billboard / Signboard	ea	3.00	In words: _____ Pesos _____ _____ _____ In figures: Php _____	In figures: _____ Php _____ _____ _____
B.7 (1)	Occupational Safety and Health Program	l.s.	1.00	In words: _____ Pesos _____ _____ _____ In figures: Php _____	In figures: _____ Php _____ _____ _____
B.9 (1)	Mobilization / Demobilization	l.s.	1.00	In words: _____ Pesos _____ _____ _____ In figures: Php _____	In figures: _____ Php _____ _____ _____
PART C	EARTHWORK				
801 (6)	Removal of Structures and Obstruction, Concrete	cu.m.	168.00	In words: _____ Pesos _____ _____ _____ In figures: Php _____	In figures: _____ Php _____ _____ _____

				In figures: Php _____	
1700 (1)	Clearing and Grubbing	sq.m.	487.00	In words: Pesos_____ _____ _____ In figures: Php _____	In figures: Php_____ _____ _____
1704 (1)b	Embankment (from Borrow)	cu.m.	1,076.59	In words: Pesos_____ _____ _____ In figures: Php _____	In figures: Php_____ _____ _____
PART F	BRIDGE CONSTRUCTION				
902 (1)a1	Reinforcing Steel, Grade 40	kg	10,664.62	In words: Pesos_____ _____ _____ In figures: Php _____	In figures: Php_____ _____ _____
900 (1)b	Structural Concrete, 20.68 MPa, A, 14 days	cu.m.	156.08	In words: Pesos_____ _____ _____ In figures: Php _____	In figures: Php_____ _____ _____

PART G	DRAINAGE AND SLOPE PROTECTION STRUCTURES				
1047 (5)d	Metal Structure Accessories (Steel Plate)	kg	34,406.55	In words: Pesos _____ _____ _____ In figures: Php _____	In figures: Php _____ _____ _____
1701 (4)	Channel Excavation (Surplus Unclassified)	cu.m.	1,031.47	In words: Pesos _____ _____ _____ In figures: Php _____	In figures: Php _____ _____ _____
1712 (1)	Concrete (Slope Protection)	cu.m.	207.30	In words: Pesos _____ _____ _____ In figures: Php _____	In figures: Php _____ _____ _____
1716 (6)	Structural Steel Sheet Piles, Furnished	lm	11,832.00	In words: Pesos _____ _____ _____ In figures: Php _____	In figures: Php _____ _____ _____
1716 (12)	Structural Steel Sheet Piles, Driven	lm	11,832.00	In words: Pesos _____ _____	In figures: Php _____ _____

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Submitted by:

Name and Signature of Bidder’s Representative

Date: _____

Position: _____

Name of the Bidder: _____

Contract ID: 24CC0265

Contract Name: Construction of Reinforced Concrete Flood Control Structure along Tabang River, Barangay Tibig

Location of the Contract: Bulakan, Bulacan

SUMMARY OF BID PRICES
(All Parts of Bill of Quantities)

Instructions for completing the Summary of Bid Prices:

1. Part No. – Enter the “Part No.” for each section of the BOQ where unit prices are entered.
2. Part Description – Enter the “Part Description” corresponding to the “Part No.”
3. Total Amount – Enter the “Total Amount” in Pesos for all pages having the same “Part Description”

Contract ID. 24CC0265		
Part No.	Part Description	Total Amount
PART A	FACILITIES FOR THE ENGINEER	
A.1.1 (8)	Provision of Field Office for the Engineer (Rental Basis)	
A.1.1 (11)	Provision of Furnitures/ Fixtures, Equipment & Appliances for the Field Office for the Engineer	
PART B	OTHER GENERAL REQUIREMENTS	
B.5 (1)	Project Billboard / Signboard	
B.7 (1)	Occupational Safety and Health Program	
B.9 (1)	Mobilization / Demobilization	
PART C	EARTHWORK	

801 (6)	Removal of Structures and Obstruction, Concrete	
1700 (1)	Clearing and Grubbing	
1704 (1)b	Embankment (from Borrow)	
PART F	BRIDGE CONSTRUCTION	
902 (1)a1	Reinforcing Steel, Grade 40	
900 (1)b	Structural Concrete, 20.68 MPa, A, 14 days	
PART G	DRAINAGE AND SLOPE PROTECTION STRUCTURES	
1047 (5)d	Metal Structure Accessories (Steel Plate)	
1701 (4)	Channel Excavation (Surplus Unclassified)	
1712 (1)	Concrete (Slope Protection)	
1716 (6)	Structural Steel Sheet Piles, Furnished	
1716 (12)	Structural Steel Sheet Piles, Driven	
Total of All Amounts in Words		
Pesos _____		

And _____ centavos		

Name _____ in the capacity of _____

Signed _____ Date _____

Duly authorized to sign the Bid for and on behalf of _____

Section IX. Checklist of Technical and Financial Documents

I. TECHNICAL COMPONENT ENVELOPE

Class “A” Documents

Legal Documents

- ☐ (a) Valid PhilGEPS Registration Certificate (Platinum Membership) (all pages);
or
- ☐ (b) Registration certificate from Securities and Exchange Commission (SEC), Department of Trade and Industry (DTI) for sole proprietorship, or Cooperative Development Authority (CDA) for cooperatives or its equivalent document;
and
- ☐ (c) Mayor’s or Business permit issued by the city or municipality where the principal place of business of the prospective bidder is located, or the equivalent document for Exclusive Economic Zones or Areas;
and
- ☐ (e) Tax clearance per E.O. No. 398, s. 2005, as finally reviewed and approved by the Bureau of Internal Revenue (BIR).

Technical Documents

- ☐ (f) Statement of the prospective bidder of all its ongoing government and private contracts, including contracts awarded but not yet started, if any, whether similar or not similar in nature and complexity to the contract to be bid; **and**
- ☐ (g) Statement of the bidder’s Single Largest Completed Contract (SLCC) similar to the contract to be bid, except under conditions provided under the rules;
and
- ☐ (h) Philippine Contractors Accreditation Board (PCAB) License;
or
Special PCAB License in case of Joint Ventures;
and registration for the type and cost of the contract to be bid; **and**
- ☐ (i) Original copy of Bid Security. If in the form of a Surety Bond, submit also a certification issued by the Insurance Commission;
or
Original copy of Notarized Bid Securing Declaration; **and**
- ☐ (j) Project Requirements, which shall include the following:
 - ☐ a. Organizational chart for the contract to be bid;
 - ☐ b. List of contractor’s key personnel (*e.g.*, Project Manager, Project Engineers, Materials Engineers, and Foremen), to be assigned to the contract to be bid, with their complete qualification and experience data;
 - ☐ c. List of contractor’s major equipment units, which are owned, leased, and/or under purchase agreements, supported by proof of ownership or

- certification of availability of equipment from the equipment lessor/vendor for the duration of the project, as the case may be; **and**
- ☐ (k) Original duly signed Omnibus Sworn Statement (OSS); **and** if applicable, Original Notarized Secretary's Certificate in case of a corporation, partnership, or cooperative; or Original Special Power of Attorney of all members of the joint venture giving full power and authority to its officer to sign the OSS and do acts to represent the Bidder.

Financial Documents

- ☐ (l) The prospective bidder's audited financial statements, showing, among others, the prospective bidder's total and current assets and liabilities, stamped "received" by the BIR or its duly accredited and authorized institutions, for the preceding calendar year which should not be earlier than two (2) years from the date of bid submission; **and**
- ☐ (m) The prospective bidder's computation of Net Financial Contracting Capacity (NFCC).

Class "B" Documents

- ☐ (n) If applicable, duly signed joint venture agreement (JVA) in accordance with RA No. 4566 and its IRR in case the joint venture is already in existence; **or** duly notarized statements from all the potential joint venture partners stating that they will enter into and abide by the provisions of the JVA in the instance that the bid is successful.

II. FINANCIAL COMPONENT ENVELOPE

- ☐ (o) Original of duly signed and accomplished Financial Bid Form; **and**

Other documentary requirements under RA No. 9184

- ☐ (p) Original of duly signed Bid Prices in the Bill of Quantities; **and**
- ☐ (q) Duly accomplished Detailed Estimates Form, including a summary sheet indicating the unit prices of construction materials, labor rates, and equipment rentals used in coming up with the Bid; **and**
- ☐ (r) Cash Flow by Quarter.

